



National Health Service (Family Planning) Act 1967

1967 CHAPTER 39

An Act to secure the provision, as part of the National Health Service, by local health authorities of services in connection with family planning. [28th June 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A local health authority in England or Wales may, with the approval of the Minister of Health, and to such extent as he may direct shall, make arrangements for the giving of advice on contraception, the medical examination of persons seeking advice on contraception for the purpose of determining what advice to give and the supply of contraceptive substances and contraceptive appliances.

(2) A local health authority may, with the approval of the Minister of Health, recover from persons to whom advice is given under this section or substances or appliances supplied thereunder or from such persons of any class or description such charges (if any) as the authority consider reasonable, having regard to the means of those persons.

2.—(1) The National Health Service Act 1946 shall have effect as if the foregoing section were included amongst the provisions thereof and the services provided under that section were provided under Part III of that Act, and the reference in section 20(1) of that Act (which requires local health authorities to submit to the Minister of Health proposals for carrying out their duties under sections 21 to 28 of that Act) to those sections shall be construed as including a reference to the foregoing section.

- 1958 c. 55. (2) The reference in section 46(1)(a) of the Local Government Act 1958 (schemes for exercise by county district councils of health and welfare functions of county councils) to Part III of the
- 1946 c. 81. National Health Service Act 1946 shall be construed as including a reference to the foregoing section, and any reference in a scheme in force under the said section 46 at the passing of this Act to a county council's functions under sections 21 to 26 of the said Act of 1946 shall be construed as including a reference to their functions under the foregoing section.

**Expenses.
and receipts.**

3.—(1) There shall be defrayed out of moneys provided by Parliament—

- 1958 c. 55. (a) any increase attributable to the provisions of this Act in the sums which, under section 52 of the National Health Service Act 1946 or section 61 of the Local Government Act 1958, are defrayed out of moneys so provided;
- (b) any increase in the sums payable out of moneys so provided in respect of rate support grants to local authorities in England and Wales which may arise from the inclusion, in the expenditure relevant to the fixing of the aggregate amount of those grants, of expenditure under this Act.

(2) All sums received, by virtue of this Act, by the Minister of Health shall be paid into the Exchequer.

Short title.

4. This Act may be cited as the National Health Service (Family Planning) Act 1967.